Appendix—Public Land Orders

[Public Land Order 516]

ARKANSAS

WITHDRAWING PUBLIC LAND FOR USE OF DEPARTMENT OF THE ARMY FOR FLOOD CONTROL PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the following-described public land is hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for use in connection with the construction, operation, and maintenance of the Blakely Mountain Dam Project, Arkansas, under the supervision of the Department of the Army, as authorized by the act of December 22, 1944 (58 Stat. 887, 895):

FIFTH PRINCIPAL MERIDIAN

T. 2 S., R. 20 W.,
Sec. 18, NE¼NW¼.

The area described contains 39.22 acres.

This order shall take precedence over but not modify the Executive Order of April 21, 1913, Power Site Reserve No. 343, so far as such order affects the above-described land.

It is intended that the land described herein shall be returned to the administration of the Department of the Interior when it is no longer needed for the purpose for which it is withdrawn.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

AUGUST 17, 1948.

[F. R. Doc. 48-7703; Filed, Aug. 27, 1948; 8:56 a. m.]

[Public Land Order 517]

ARIZONA

REVOKING EXECUTIVE ORDER NO. 9081 OF FEBRUARY 27, 1942, WITHDRAWING PUBLIC LANDS FOR USE OF THE WAR DEPARTMENT FOR AVIATION PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 9081 of February 27, 1942, withdrawing public lands for the use of the War Department for aviation purposes is hereby revoked.

The jurisdiction over and use of such lands granted to the War Department by Executive Order No. 9081 shall cease upon the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on October 20, 1948. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from October 20, 1948, to January 18, 1949, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from September 30, 1948, to October 19, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on October 20, 1948, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on January 19, 1949, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from December 30, 1948, to January 18, 1949, inclusive, and all such applications, together with those presented at 10:00 a. m. on January 19, 1949 shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office at Phoenix, Arizona, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office at Phoenix, Arizona.

The lands affected by this order are described as follows:

GILA AND SALT RIVER MERIDIAN

T. 17 S., R. 15 E., secs. 18, 19 and 30.

The areas described aggregate 2,062.72 acres.

These public lands are nearly level untimbered and without surface waters. They are relatively poor range land with low carrying capacity and that they have no value for agricultural purposes.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

AUGUST 18, 1948.

[F. R. Doc. 48-7705; Filed, Aug. 27, 1948; 8:56 a. m.]

TITLE 48—TERRITORIES AND INSULAR POSSESSIONS

Chapter IV—The Alaska Railroad, Department of the Interior

PART 400—ORGANIZATION AND PROCEDURE

REDELEGATIONS OF AUTHORITY; CONTRACTS

Section 400.100 is amended by adding a new subparagraph 15 to paragraph (b) thereof, as follows:

(15) Real Estate & Contract Agent.

(Sec. 1, 38 Stat. 305, 48 U. S. C. 301, E. O. 3861, June 8, 1923)

J. P. JOHNSON,
General Manager.

AUGUST 6, 1948.

[F. R. Doc.48-7702; Filed, Aug. 27, 1948; 8:59 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[Rev. S. O. 822]

PART 95—CAR SERVICE

REFRIGERATORS FOR BOX CARS TO WASHINGTON

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 23d day of August A. D. 1948.

It appearing, that the practice of transporting certain refrigerator cars empty westbound to Washington diminishes the use, control and supply of such cars, and that the loading of those cars with non-perishables in lieu of box cars will reduce the shortage of box cars; in opinion of the Commission an emergency requiring immediate actions exists in the State of Washington. *It is ordered,* that:

§ 95.822 *Refrigerators For Box Cars to Washington.* (a) Any common carrier by railroad subject to the Interstate Commerce Act, for transporting:

(1) Westbound shipments in carloads originating at points shown as origin points in Agent L. E. Kipp's tariff, I. C. C. No. 1516, supplements thereto or reissues thereof, and destined to points in